

Motion.

Disposition

This motion will be continued to 6/2/26, 9am, for Plaintiff to provide page numbers to their exhibits, as well as to reference particular pages or narrow page ranges in any of their documents that accompany their motion.

Plaintiff to file Order and notify Defendant.

6. 9:00 AM CASE NUMBER: L25-05034

CASE NAME: DISCOVER BANK VS. JILL TRICE

***HEARING ON MOTION IN RE: TO SET ASIDE JUDGMENT AND DISMISS ACTION WITHOUT PREJUDICE**

FILED BY: DISCOVER BANK

TENTATIVE RULING:

Background

Plaintiff filed a Motion to Set Aside the Judgment and dismiss the matter without prejudice. The Motion was served on Defendant and is unopposed.

Analysis

Plaintiff alludes to an investigation and invokes the interests of justice but doesn't explain the reason for the dismissal request. However, since the Motion is unopposed and there is certainly no prejudice to the Defendant in granting the Motion, the court will grant.

Disposition

Plaintiff's Motion is granted.

Plaintiff to file Order.

7. 9:00 AM CASE NUMBER: L25-07554

CASE NAME: WELLS FARGO BANK, N.A. VS. NICK LINDQUIST

***HEARING ON MOTION IN RE: MOTION FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN REQ FOR ADM AS ADMITTED FILED BY PLN ON 11/17/25**

FILED BY: WELLS FARGO BANK, N.A.

***TENTATIVE RULING**

Plaintiff has filed a Motion for an Order Deeming the Truth of the Matters Specified as Admitted.

But the parties have submitted a stipulation, filed 2/13/26, calling for dismissal of the action and for the court to retain jurisdiction.

Disposition

This Motion is moot and will be dismissed.

Court to vacate this matter from calendar.

8. 9:00 AM CASE NUMBER: MSL19-02010

CASE NAME: CAPITAL ONE VS OECHSLI

***HEARING ON MOTION IN RE: TO SET ASIDE CCP 664.6 DISMISSAL AND ENTER JUDGMENT**

FILED BY: CAPITAL ONE BANK (USA), N.A.

***TENTATIVE RULING**

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant's counsel, the same address included in the parties' signed agreement, under Section 664.4, filed 1/3/24. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$3,360.33, plus costs of \$295, less any credits for payments received.

The Defendant made payments of \$478.

A dismissal was entered on 11/13/25.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$3,177.33.

Plaintiff to file order on Motion, as well as submit Judgment.